

Pesticides Management Act, 2019

Document type: act

Source: Nepal Law Commission / Ministry of Law, Justice and Parliamentary Affairs

Chunks merged: 13

Chapter-1

Preliminary

1. Short Title and Commencement: (1) This Act shall be called the "Pesticide Management Act, 2076 (2019)".

(2) This Act shall commence immediately. 2. Definitions: Unless the subject or context otherwise requires, in this Act,-

(a) "Centre" means the Plant Quarantine and Pesticide Management Centre pursuant to Section 14.

(b) "Domestic pesticide" means a pesticide prepared from plant-based and natural sources including cow dung, milk, etc., at the farmer level for household and commercial purposes.

(c) "Pesticide" means an organic, botanical, biological, and chemical substance used to protect plants, agricultural products, forest and forest products, organisms, birds and animals, human health, storage, packaging, and construction works from diseases, insects, mites, nematodes, weeds, rats, etc., causing harm, and the said term also denotes the following substances:

(1) Substances that reduce the growth of harmful organisms by preying, acting as predators, acting as parasites, causing disease, and substances that attract or repel such organisms (pheromones, attractants, repellents, deterrents),

(2) Substances that affect the normal growth and reproductive function of harmful organisms (insect growth regulators, inhibitors),

(3) Substances that control the growth of harmful plants (plant growth inhibitors),

(4) Substances that remove leaves and foliage (defoliant),

(5) Substances that reduce moisture and cause drying (desiccants),

(6) Substances that thin fruit numbers (thinning agents),

(7) Substances that control problems including premature fruit drop,

(8) Substances used for disinfection in laboratories related to agricultural crop and agricultural product production (disinfectants).

(d) "Prescribed" or "as prescribed" means prescribed or as prescribed in the rules made under this Act.

(e) "Inspector" means a Pesticide Inspector appointed pursuant to Section 24.

(f) "Prohibited pesticide" means a pesticide whose production, formulation, export, import, registration, sale, distribution, or use is banned due to adverse effects on human health, animal health, and the environment.

(g) "Chief" means the Chief of the Centre pursuant to Section 16.

(h) "Plant" includes living or propagative plant parts such as stems, branches, buds, grafts, bark, roots, leaves, fruits, flowers, seeds, and germplasm.

(i) "Ministry" means the Ministry of the Government of Nepal looking after agricultural affairs.

(j) "Adulterated pesticide" means a pesticide that contains less or more of any active ingredient required, has added substances that reduce the pesticide's efficacy, or does not possess the quality, quantity, or characteristics as mentioned in the pesticide label.

(k) "Plant product" means a substance made from plant stems, branches, buds, grafts, bark, roots, leaves, fruits, flowers, seeds, and the said term also denotes dead plants or any part thereof.

(l) "Active ingredient" means biologically or chemically active ingredient (technical material) present during the formulation and production of a pesticide.

(m) "Committee" means the Pesticide Management Committee pursuant to Section 11.

(n) "Listed pesticide" means a pesticide prescribed by the Government of Nepal by registering and publishing a notice in the Nepal Gazette pursuant to this Act.

Chapter-2

Registration of Pesticides

3. Requirement for Registration of Pesticides: (1) Any person, institution, or body shall register with the Centre before producing, formulating, exporting, importing, commercially using, storing, selling and distributing, transporting, packaging, or repackaging any pesticide and its active ingredient.

(2) A person, institution, or body wishing to register pursuant to sub-section (1) shall submit an application to the Centre through the Ministry looking after agricultural affairs of the province, or directly, in the prescribed details and format, and the Ministry looking after agricultural affairs of the concerned province shall forward the application received to the Centre within the prescribed time.

(3) Upon receipt of the application pursuant to sub-section (2), the Centre shall conduct necessary inquiries, and if prescribed conditions are found to be fulfilled, register such pesticide and issue a certificate thereof.

(4) The validity period of the certificate issued pursuant to sub-section (3) shall be three years.

(5) The fee payable for the registration of a pesticide and other related provisions shall be as prescribed.

(6) The Ministry shall publish the names of pesticides registered pursuant to sub-section (3) in the Nepal Gazette. 4. Prohibition on Use of Unregistered Pesticides: (1) No person shall produce, formulate, export, import, commercially use, store, sell and distribute, transport, package, or repackage any pesticide other than those registered under Section 3.

(2) Notwithstanding anything written in sub-section (1), it shall not be hindered to import a pesticide for scientific experimentation or research purposes with prior approval of the Centre. 5. Power to Cancel or Suspend Registration: (1) The Centre may cancel or suspend the registration of a pesticide in the following circumstances:

(a) If it is deemed inappropriate to maintain the registration due to the registered pesticide causing adverse effects on the health of humans, animals, or plants and the environment,

- (b) If the use of the pesticide, for which purpose it was imported or formulated, is found ineffective,
 - (c) If the pesticide, for which purpose it was imported or formulated, is misused,
 - (d) If, after registration, any fact causing negative impact nationally or internationally is discovered, or due to any change in circumstances, it appears necessary to cancel or suspend the registration,
 - (e) If conditions prescribed at the time of registration are found to be violated,
 - (f) If any act contrary to this Act or the rules, directives, and standards made under this Act is found to have been done.
- (2) The procedure relating to the cancellation or suspension of a registered pesticide shall be as prescribed.
- 6.

Re-registration of Pesticides: (1) Except in the circumstances mentioned in clauses (a), (c), (e), and (f) of sub-section (1) of Section 5, if there is a need to use such pesticides even after the validity of the registration certificate has expired, the person, institution, or body registering under Section 3 shall submit an application to the Centre for re-registration. (2) In the case of pesticides whose registration has been cancelled or suspended on the grounds of clause (b) of sub-section (1) of Section 5, if any person, institution, or body believes that such a circumstance no longer exists and it is appropriate to re-register and use the pesticide, they may submit an application to the Centre for re-registration. (3) Regarding the application submitted to the Centre pursuant to sub-section (1) or (2), if upon necessary inquiry it appears appropriate to re-register on the prescribed grounds, the Centre may re-register such pesticide and issue a certificate. (4) The validity period of the certificate provided pursuant to sub-section (3) shall be three years. (5) The grounds for re-registration of a pesticide, the fee payable therefor, and other provisions shall be as prescribed. 7. Renewal of Registered Pesticides: (1) An application for renewal shall be submitted to the Centre at least thirty-five days before the expiry of the term of a pesticide registered under Sections 3 and 6. (2) If upon inquiry of the application filed pursuant to sub-section (1) it appears reasonable, the Centre shall renew the registration for another three years. (3) Other procedures relating to the renewal of a pesticide shall be as prescribed. Chapter-3 Provisions Relating to License 8.

Requirement to Obtain License: (1) Any person, institution, or body wishing to produce, formulate, export, import, transport, package, or repack registered or re-registered pesticides shall obtain a license from the Centre before undertaking such activity. (2) Before granting a license pursuant to sub-section (1), the Centre shall provide the prescribed technical information. (3) The validity period of the license granted pursuant to sub-section (1) shall be three years. (4) The concerned licensee shall submit an application for renewal to the Centre with the prescribed fee at least thirty-five days before the expiry of the period mentioned in sub-section (3). (5) A licensee unable to submit an application within the period mentioned in sub-section (4) may submit an application to the Centre for renewal within fifteen days from the date of expiry of the period mentioned in sub-section (3) with double the fee. (6) Upon conducting necessary inquiry regarding the applications received pursuant to sub-sections (4) and (5), the Centre may renew the license for another three years. (7) Notwithstanding anything written in sub-section (1), provisions relating to granting, renewing, and cancelling licenses for the business of selling and distributing pesticides and applying pesticides among the pesticides registered under Section 3 shall be in accordance with the provincial law of the concerned province. (8) A license not renewed pursuant to this section shall be deemed automatically cancelled. (9) The format for application for a license pursuant to sub-section (1), fee payable therefor, procedure, qualification of the person, institution, or body seeking the license, and other provisions relating to renewal of license shall

be as prescribed. 9. Power to Cancel License: (1) If any licensee violates the condition specified while granting the license, the Centre may cancel such license at any time. (2) Before canceling the license pursuant to sub-section (1), the Centre shall give the concerned licensee a reasonable opportunity to submit any reasonable cause why the license should not be canceled, allowing a period of fifteen days. (3) If cause is submitted why the license should not be canceled pursuant to sub-section (2), or if no information is received within that time, the Centre shall make a necessary decision regarding the cancellation within fifteen days and notify the concerned licensee thereof. (4) During the period from the initiation of license cancellation pursuant to sub-section (2) until the decision is made pursuant to sub-section (3), the said license shall be deemed automatically suspended. 10.

Requirement to Obtain License from Province: (1) Any person, institution, or body wishing to engage in the sale and distribution, storage, commercial use of registered or re-registered pesticides, and the business of applying pesticides shall obtain a license from the Provincial Pesticide Management Committee. (2) Provisions for granting, renewing, and canceling licenses pursuant to sub-section (1) shall be as determined by the provincial law. Chapter-4 Formation, Functions, Duties and Powers of Committee 11. Pesticide Management Committee: (1) There shall be a Pesticide Management Committee to provide necessary advice, suggestions, and consultation to the Government of Nepal, including for determining necessary policies relating to pesticide management. (2) The Committee shall consist of the following members: (a) Secretary, Ministry - Chairperson (b) Joint Secretary, Ministry of the Government of Nepal looking after environmental affairs - Member (c) Director General, Department of Livestock Services - Member (d) Executive Director, Nepal Agricultural Research Council - Member (e) Chief, Department of Health Services or specialist representative, Epidemiology and Disease Control Division - Member (f) Five persons, including at least two women, nominated by the Ministry from among pesticide experts, forestry experts, agricultural experts, and consumer farmers - Member (g) One person nominated by the Ministry from among pesticide dealers - Member (h) Under Secretary (Law), Ministry - Member (i) Chief - Member-Secretary (3) The term of office of nominated members pursuant to clauses (f) and (g) of sub-section (2) shall be three years, and they may be nominated once more. (4) Notwithstanding anything written in sub-section (3), if any member nominated pursuant to clauses (f) and (g) of sub-section (2) acts against the interest of the Committee, the Ministry may remove them even before the completion of their term. Provided that before such removal, they shall be given a reasonable opportunity to submit a defense. (5) The Committee may invite experts on relevant subjects to its meeting as required. 12.

Meeting and Decision of Committee: (1) The meeting of the Committee shall be held at least once every six months. (2) The meeting of the Committee shall be held on the date, time, and place fixed by the Chairperson. (3) If more than fifty percent of the total number of members of the Committee are present, the meeting shall be deemed to have a quorum. (4) The meeting of the Committee shall be chaired by the Chairperson, and in their absence, a member present at the meeting chosen by the members from among themselves shall chair the meeting. (5) The opinion of the majority shall prevail in the meeting of the Committee, and in case of a tie, the Chairperson shall cast the deciding vote. (6) The decision of the Committee shall be certified by the Chairperson and the Member-Secretary. (7) Other procedures relating to meetings of the Committee shall be as determined by the Committee itself. 13. Functions, Duties and Powers of Committee: (1) In addition to the functions, duties, and powers mentioned elsewhere in this Act, the functions, duties, and powers of the Committee shall be as follows: (a) Formulate policies relating to pesticides and submit them to the Government of Nepal, (b) Encourage the private sector to invest in biological, botanical, and safe chemical pesticide industries, (c) Perform or cause to perform functions related to pesticide quality determination and management, (d) Provide necessary suggestions to the Government of

Nepal for the ratification and implementation of international treaties and agreements related to pesticides, (e) Prohibit pesticides that have adverse effects on the health of humans, birds and animals, organisms, and the environment, (f) Hear complaints against decisions made by the Inspector or Chief, (g) Determine or cause to determine whether any substance or matter is a pesticide or not, (h) Approve and implement or cause to implement standards related to pesticide management, (i) Delegate powers to the Centre and sub-committees as necessary, (j) Perform other prescribed functions. (2) The Committee may form a sub-committee as necessary to facilitate and smoothly operate the production, formulation, export, import, commercial use, storage, sale and distribution, transport, packaging or repackaging of pesticides. (3) The functions, duties, powers, and procedures of the sub-committee formed pursuant to sub-section (2) shall be as specified by the Committee at the time of forming such sub-committee. (4) The Committee may delegate some of the powers vested in it under this Act to the Centre, the Provincial Pesticide Management Committee pursuant to Section 39, or a sub-committee.

Chapter-5

Registration and Management Centre

14. Centre to Exist: (1) There shall be a Plant Quarantine and Pesticide Management Centre under the Ministry to perform functions including regulation, registration, and management of pesticides.

(2) The Government of Nepal shall provide the necessary manpower for the Centre. 15. Functions, Duties and Powers of Centre: In addition to the functions, duties, and powers mentioned elsewhere in this Act, the functions, duties, and powers of the Centre shall be as follows:

- (a) Act as the secretariat of the Committee and perform necessary functions,
- (b) Arrange for the registration and re-registration of pesticides,
- (c) Determine the process and procedures to be followed during the registration of pesticides,
- (d) Inquire into applications received for registration, re-registration, or renewal of registered pesticides,
- (e) Register and re-register pesticides and issue certificates and renew them,
- (f) Grant licenses for performing functions related to pesticides and renew them,
- (g) Prepare prescribed infrastructure for the use of pesticides,
- (h) Specify standards for equipment needed when using pesticides,
- (i) Perform other functions specified by the Committee,
- (j) Perform other prescribed functions. 16. Chief: The Ministry may designate a Gazetted First-Class Officer working in the field of Nepal Agricultural Service, Crop Protection, to work as the Pesticide Registration and Management Chief. 17. Functions, Duties and Powers of Chief: (1) In addition to the functions, duties, and powers mentioned elsewhere in this Act, the functions, duties, and powers of the Chief shall be as follows:

- (a) Act as the head of the Centre,
- (b) Monitor and test or cause to test whether the quality of pesticides is according to the prescribed standards and take action if found contrary to standards,
- (c) Perform or cause to perform functions related to pesticide registration and management,
- (d) Prepare an annual report on the activities performed by the Centre and submit it to the Committee,
- (e) Perform or cause to perform other functions specified by the Committee,
- (f) Perform other prescribed functions.

(2) The Chief may delegate the powers vested in them to subordinate officer employees as necessary.

Chapter-6

18.

Use of Pesticides: (1) No person shall indiscriminately use pesticides or produce and sell or distribute products with pesticide residues exceeding the prescribed limit. (2) No person, knowing that a pesticide is adulterated or of substandard quality, shall sell, distribute, store, or use such pesticide. (3) A person or institution selling or distributing pesticides shall keep safe pesticides and safe attire to be worn during the use and disposal of such pesticides for sale. (4) Necessary protective measures as prescribed shall be adopted during the production, formulation, export, import, commercial use, storage, sale and distribution, transport, or disposal of pesticides. (5) Storage and sale of pesticides and foodstuffs shall be done from separate locations. (6) Pesticides shall be used only for the purpose for which they are registered under this Act. (7) Before importing or formulating a pesticide, the container of such pesticide and the format of the label and leaflet written in Nepali shall be approved by the Centre before use or causing use. (8) Other provisions relating to the use of pesticides shall be as prescribed. 19. Use of Domestic Pesticides: Pursuant to this Act, domestic pesticides shall be produced and distributed in an environmentally friendly manner. Moreover, necessary standards for the registration, production, storage, transport, and sale and distribution of such pesticides shall be as prescribed. 20. Promotion of Production and Use of Botanical and Biological Pesticides: The Ministry shall promote the production and use of botanical and biological pesticides used to manage various diseases or insects affecting crops, plants, homes, and storage. 21. Pesticide Production and Formulation: (1) Production and formulation of pesticides shall be done in a manner that is human and animal health and environmentally friendly. (2) Provisions relating to the production and formulation of pesticides shall be as prescribed. 22. Imposing Ban on Pesticide Use: (1) The Committee may, on the recommendation of the Centre, impose a ban on the production, formulation, export, import, commercial use, storage, sale and distribution, or transport of pesticides that have adverse effects on human and animal health and the environment. (2) The Ministry shall publish a notice containing the names of pesticides banned pursuant to sub-section (1) in the Nepal Gazette. (3) Other provisions relating to imposing a ban on the use of pesticides shall be as prescribed. 23. Management of Expired Pesticides: (1) If the validity period of any pesticide imported by an importer expires, they shall manage it properly at their own expense.

Provided that, in the case of pesticides produced, formulated, exported, imported, commercially used, stored, sold or distributed, transported, packaged, or repackaged, the concerned company or industry shall manage it properly at least one month before the expiry date mentioned on such pesticide. (2) Any person, institution or body, dealer, or entrepreneur conducting business related to pesticides shall manage expired pesticides themselves, subject to the prescribed standards. (3) While managing pursuant to sub-section (2), the concerned pesticide company, industry, and person shall arrange for the return of expired, prohibited, broken, or leaking pesticides through the importer itself. The Government of Nepal shall make necessary arrangements for the immediate storage of such pesticides. (4) Standards and procedures relating to return and storage pursuant to sub-section (3) shall be as prescribed. 24. Appointment of Inspector: (1) The Ministry may, as required, appoint a Gazetted Third-Class employee working in the field of Nepal Agricultural Service, Crop Protection, possessing a bachelor's degree in agricultural science or equivalent qualification, as a Pesticide Inspector to perform functions related to pesticide use and management. (2) The Provincial Government may, as required, appoint an officer-level employee working in the field of Agricultural Service, Crop Protection, possessing a bachelor's degree in agricultural science or equivalent qualification, as a Pesticide Inspector to perform functions related to pesticide use and management. (3) The concerned province shall inform the Ministry of the appointment of an Inspector pursuant to sub-section (2). 25.

Functions, Duties and Powers of Inspector: (1) In addition to the functions, duties, and powers mentioned elsewhere in this Act, the functions, duties, and powers of the Inspector shall be as follows: (a) Monitor whether this Act and the rules made under this Act are complied with and recommend to the Committee, (b) Enter premises where activities such as production, formulation, export, import, commercial use, storage, sale and distribution, transport, packaging, repackaging, or advertising of pesticides are carried out, conduct periodic or surprise inspections, and recommend to the Committee, (c) If adulterated or substandard quality pesticide is found during monitoring, seal the sale and distribution of such pesticide or seal the distribution area, (d) Study and analyze certificates, licenses, records, and other documents and evidence related to pesticides found with any person, institution, or body, (e) Collect and analyze or cause to analyze samples of pesticides and crops following the prescribed procedure, (f) Investigate or cause to investigate if a violation of this Act or rules made under this Act is suspected, and submit a report thereof to the Centre, (g) If violation of the Act and regulations is found during investigation pursuant to clause (f), confiscate the equipment, pesticides, records, documents, or other related materials used in such activity and provide a confiscation receipt to the concerned violating person, (h) Arrange for safe storage of pesticides confiscated pursuant to clause (g), (i) Perform other prescribed functions. (2) An Inspector appointed pursuant to sub-section (1) of Section 24 shall submit a quarterly report of the work performed by them to the Centre, and an Inspector appointed pursuant to sub-section (2) of Section 24 shall submit a report of the work performed by them to the Ministry of the province looking after agricultural affairs. 26. Sample Collection: (1) The Centre shall collect samples for the purpose of testing the quality of pesticides. (2) Other provisions relating to the collection and analysis of pesticide samples shall be as prescribed. 27. Establishment of Laboratory: (1) The Ministry may establish a laboratory related to pesticides to perform functions including quality testing and research testing of pesticides. (2) A Provincial Government may establish a laboratory related to pesticides subject to the standards specified by the Ministry. (3) Until a laboratory is established pursuant to sub-sections (1) and (2), the Ministry may designate a recognized laboratory currently operating with investment from the Government of Nepal or established and operating at the private level to function as the laboratory pursuant to sub-sections (1) and (2). 28.

Prohibition on Promotion of Unregistered and Prohibited Pesticides: No person, institution, or body shall publish false or misleading details about unregistered or prohibited pesticides or promote them with the intention of causing confusion or deception with any other pesticide. 29. Pesticide Disposal: (1) Pesticides shall be disposed of in a manner that does not adversely affect the health of humans, birds and animals, aquatic life, plants, and the environment. (2) When destroying pesticides, pesticide waste, and their containers, they shall be disposed of separately based on the nature of the substance. (3) The method and standards for destroying pesticides pursuant to sub-section (1) shall be as specified by the Committee. 30. Record Keeping: (1) Any person, institution, or body involved in the production, formulation, export, import, commercial use, storage, sale and distribution, transport, or disposal of pesticides shall maintain accurate records including the quantity, price, and other prescribed details of the pesticides they have dealt with. (2) Records maintained during the transaction pursuant to sub-section (1) shall be made available immediately upon request by the Inspector, Chief, or Centre. (3) Other provisions relating to keeping records of pesticides shall be as prescribed. 31. Code of Conduct: (1) The Centre may, with the approval of the Committee, formulate and implement a code of conduct to be followed by persons, institutions, or bodies involved in the production, formulation, export, import, transport, packaging, or repackaging of pesticides. (2) The Provincial Government may, without prejudicing the code of conduct formulated pursuant to sub-section (1), formulate and implement a code of conduct to be followed by commercial users and wholesale and retail sellers of pesticides within the province for the sale and distribution, storage of pesticides. Chapter -7 Offenses,

Penalties and Compensation 32.

Deemed to Have Committed Offense: If any person does or causes to do any of the following acts, they shall be deemed to have committed an offense under this Act: (a) Produces, formulates, imports, exports, commercially uses, stores, sells and distributes, transports, packages, repackages, or disposes of unregistered pesticides contrary to Section 4, (b) Conducts business related to pesticides without obtaining a license contrary to Section 8, (c) Produces, sells, or distributes pesticides with residues exceeding the prescribed limit, or sells or distributes adulterated pesticides, contrary to Section 18, (d) Indiscriminately uses pesticides or uses adulterated pesticides contrary to Section 18, (e) Acts or causes to act contrary to prevailing standards relating to the production, formulation, export, import, commercial use, storage, sale and distribution, transport, packaging, repackaging, or disposal of prohibited pesticides contrary to Section 22, (f) Sells or distributes expired pesticides without managing them contrary to Section 23, (g) Acts contrary to Sections 28, 29, and 30, (h) Uses or trades substandard or counterfeit pesticides, (i) Obstructs pesticide management, (j) Uses pesticides causing environmental pollution, (k) Does or causes to do any other work contrary to this Act or the rules and standards made under this Act. 33. **Penalty and Fine:** If any offense is committed pursuant to Section 32, the following penalties and fines shall apply: (a) For any offense pursuant to clause (a), a fine of fifty thousand to one hundred thousand rupees or imprisonment for up to three months or both, (b) For any offense pursuant to clause (b), a fine of ten thousand to twenty thousand rupees or imprisonment for up to one month or both, (c) For an offense pursuant to clause (c), a fine of fifty thousand to one hundred thousand rupees or imprisonment for up to three months or both, (d) For an offense pursuant to clause (d), a fine of five thousand to twenty thousand rupees, (e) For an offense pursuant to clause (e), a fine of fifty thousand to two hundred thousand rupees and imprisonment from one month to one year or both, (f) For an offense pursuant to clauses (f), (g), (h), (i), (j), and (k), a fine of five thousand to twenty thousand rupees or imprisonment for up to one month or both. 34. **Investigation and Filing of Cases:** (1) Investigation and inquiry of cases under this Act shall be conducted by the Inspector pursuant to sub-section (1) of Section 24. (2) After the investigation and inquiry pursuant to sub-section (1) are completed, if the Inspector, after obtaining the opinion of the government attorney, decides to prosecute, the case shall be filed in the concerned District Court. 35.

Provision Relating to Compensation: If any accident occurs during the production, export, import, formulation, adulteration, transportation, sale and distribution, storage, use, or disposal of a pesticide, the concerned licensed person, institution, or body shall provide compensation to the victim as prescribed. Provided that, if any kind of damage occurs due to an act deemed to be an offense under Section 32, no compensation shall be provided. 36. **Confiscation:** (1) If a penalty or fine is imposed pursuant to Section 33, the pesticide that was produced, formulated, exported, imported, commercially used, stored, sold and distributed, transported, packaged, or repackaged shall also be confiscated. (2) Until the final settlement of the case regarding the pesticide confiscated by the Inspector pursuant to sub-section (1), the cost incurred for the safe storage and disposal of such pesticide shall be borne by the owner of the concerned pesticide. 37. **Government of Nepal to be Plaintiff:** In cases under this Act, the Government of Nepal shall be the plaintiff. 38. **Right to Appeal:** (1) A party dissatisfied with a decision made by the Inspector or Chief may appeal to the Committee within thirty-five days from the date of such decision. (2) A party dissatisfied with a decision made by the District Court in a case related to an offense under this Act may appeal to the concerned High Court within thirty-five days. Chapter-8 Miscellaneous 39. **Provincial Pesticide Management Committee:** (1) There shall be formed a Pesticide Management Committee in each province to perform tasks related to pesticides, including granting licenses to sellers, distributors, storers, commercial users, and pesticide applicators, renewing them, monitoring such activities, and ensuring compliance with standards specified by the Ministry. (2) The

formation of the Committee pursuant to sub-section (1) shall be in accordance with the concerned provincial law. 40. Provision Relating to Monitoring: (1) The responsibility for monitoring all activities related to pesticides shall be with the Centre. (2) The Provincial Pesticide Management Committee shall monitor the activities related to pesticides within the province and submit a report to the Ministry of the province looking after agricultural affairs and the Committee. Provided that, if the Provincial Pesticide Management Committee has not been formed, the Committee may designate the concerned body or officer to monitor and submit a report. 41. Duty to Provide Assistance: (1) If the Inspector needs any assistance, including security, in the course of performing their duty, they may request the concerned local administration. (2) If the Inspector requests assistance pursuant to sub-section (1), it shall be the duty of the concerned local administration to provide such assistance. 42.